

Petition for Substitution of Arbitrator upon Termination of Mandate

In the High Court at Calcutta Ordinary Original Civil Jurisdiction

In the matter of:

The Arbitration & Conciliation Act 1996

And

In the matter of:

An application under section 15 of the
said Act

And

In the matter of:

An Arbitration Agreement contained in
the Contract No. 3 dated

And

In the matter of:

Builders India Private Ltd. a company
registered under the Companies Act
1956 and carrying on business at 7A,
Camac Street, Calcutta 700 016

Petitioner

versus

1. S.N. Udyog Private Ltd., a
company registered under the
Companies Act 1956 and carrying
on business at 6 S.P. Mukherjee
Road, Calcutta 700 025

2. Mr. Somnath Banerjee of 7
Hindustan Park, Calcutta 700 029

Respondents

To

The Hon'ble Mr.....

Chief Justice and His Companion Justices of the said Hon'ble
Court

The humble petition of the petitioner above-named most respectfully

SHEWETH:

1. By and under an agreement dated the petitioner undertook to construct houses, flats and guest-houses, for the first respondent on agreed specifications, terms and conditions and price.
2. Your petitioner completed the work, obtained payment of the running bills, offered delivery of houses, flats and guest-houses and claimed payment of the final bill.
3. The first respondent raised various minor objections with a view to withhold payment of the outstanding bills.
4. Disputes and differences arose in relation to the said agreement. The said agreement contained an arbitration clause. According to the terms of the agreement, Mr. Anil Chaudhury was appointed as the sole arbitrator in respect of the matters in dispute between the parties.
5. The said arbitrator failed to enter into reference in spite of requests.
6. On application being made by the petitioner in this Hon'ble Court the said arbitrator was

removed by an Order dated _____ and respondent No. 2 was appointed in place and stead of Mr. Anil Chaudhury.

7. The disputes between the parties concerned fraud and forgery of the documents which form the foundation of the claims and contentions of the parties.

8. Your petitioner states that such disputes involved complicated questions of Criminal Law and detailed evidence to be taken including opinion from experts for that purpose and several witnesses have to be summoned, which could not be appropriately done and the matter adjudicated upon by the present arbitrator. In the premises, it will be more appropriate and convenient that his mandate be terminated.

9. The present arbitrator appointed by the said order removing the earlier arbitrator is a non-legal person and he will not be able to adjudicate the present disputes between the parties which involves complicated questions of forgery of documents and fraud a new arbitrator be appointed interims of sub-section (2) of section 15 of the Act.

10. Unless orders are made as prayed for herein your petitioner will suffer loss and prejudice.

11. This application is made *bona fide* and in the interest of justice.

Your petitioner therefore humbly prays Your Lordships for the following orders:

- (a) Terminate the mandate of the present arbitrator;
- (b) Appoint by substitution a new and competent arbitrator in terms of section 15(2) of the Act;
- (c) Costs of this application be the costs in the court proceedings;
- (d) Further Orders be made and directions be given as to this Hon'ble Court may deem fit and proper.

And your petitioner as in duty bound shall ever pray.

Signature of the Advocate
for the petitioner

Signature of
the petitioner

Verification

I,son of.....aged.....years by occupation service, working for gain at 7A, Camac Street, Calcutta 700 016 do hereby solemnly affirm and say as follows:

I am the Manager of Builders India Private Ltd., and its Principal Officer and Constituted Attorney. I know and I have made myself acquainted with the facts and circumstances of this case and I am able to depose thereto. I am authorised and competent to verify the aforesaid petition and I do verify the same on behalf of the petitioner.

The statements contained in paragraphs 1 to 13 hereinabove are true to my knowledge based on information derived from records maintained by the petitioner company and I believe them to be true.

Solemnly affirmed by the said Mr pursuant to Board Resolution dated _____ of the Builders India Private Ltd. in the Court House at Calcutta on the 15th day of December 1999.

Before me Commissioner